

1 ENGROSSED HOUSE
2 BILL NO. 3407

By: Patzkowsky of the House

3 and

4 Wingard of the Senate
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7 An Act relating to property; creating right to sell,
8 salvage, or remove abandoned manufactured home and
9 its contents for certain real property owners;
10 defining term; requiring written notice to be sent
11 via certified mail; requiring publication if
12 certified mail is not delivered or is unclaimed;
13 establishing requirements of the contents of the
14 written notice; providing for notice to Oklahoma Tax
15 Commission; requiring real property owner to document
16 condition of the abandoned manufactured home via
17 photographs; mandating commercially reasonable sale;
18 allowing for abandoned manufactured home to be
19 redeemed; providing for how the proceeds from the
20 sale are to be distributed; removing liability of
21 real property owner if good faith is exercised;
22 providing this act to apply to abandoned manufactured
23 homes located on leased lots, private real property,
24 or manufactured home park property; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 690 of Title 60, unless there is
created a duplication in numbering, reads as follows:

A. As used in this act, "abandoned manufactured home" means a
manufactured home left on real property where the owner has failed

1 for a period of one hundred eighty (180) consecutive days to pay for
2 the use of the property or otherwise communicate with the real
3 property owner regarding possession or removal of the manufactured
4 home.

5 B. In the absence of any other agreement between the real
6 property owner and the owner of a manufactured home, any person,
7 firm, or corporation that allows an individual to use or occupy real
8 property in order to utilize a manufactured home shall have the
9 right to sell, salvage, or remove the manufactured home and its
10 contents if the owner of the manufactured home has failed to contact
11 the real property owner or to provide payment for the use of the
12 real property for one hundred eighty (180) days; provided, however,
13 that prior to exercising such right, the real property owner shall:

14 1. Within thirty (30) days after the failure of the
15 manufactured homeowner to make payment or otherwise contact the real
16 property owner, send by certified mail, return receipt requested,
17 written notice to all recorded lienholders and to the last-known
18 address of the manufactured homeowner stating the intent of the real
19 property owner to exercise the right to sell, salvage, or remove the
20 manufactured home and its contents if payment for use and occupying
21 the real property is not made. The written notice shall include a
22 description sufficient to identify the manufactured home that is
23 subject of the notice, including, if available, the manufacturer's
24 serial number, vehicle identification number (VIN), title number,

1 lot number, or other identifying characteristics, and the physical
2 location of the manufactured home. If certified mail is returned
3 unclaimed or undeliverable, the real property owner shall also
4 provide notice by posting notice on the manufactured home and
5 publishing said notice once a week for two (2) consecutive weeks in
6 a newspaper of general circulation in the county where the
7 manufactured home is located;

8 2. If, thirty (30) days after the mailing of the first notice,
9 payment or contact has not been made, send a second written notice
10 by certified mail, return receipt requested, to all recorded
11 lienholders and to the last-known address of the manufactured
12 homeowner restating the intent to exercise such right and including
13 the same identifying information required by paragraph 1 of this
14 subsection. The real property owner shall also provide written
15 notice to the Oklahoma Tax Commission Motor Vehicle Division if the
16 manufactured home is titled property; and

17 3. Upon the expiration of one hundred twenty (120) days after
18 mailing the second notice, if payment or contact has not been made,
19 proceed to exercise the right to sell, salvage, or remove the
20 abandoned manufactured home and its contents in accordance with this
21 act. Prior to sale, salvage, or removal, the real property owner
22 shall document the condition of the abandoned manufactured home with
23 photographs.

1 C. Any sale conducted pursuant to this act shall be a
2 commercially reasonable sale, either public or private, after
3 reasonable notice to all parties previously notified under this act.
4 A bill of sale executed pursuant to this act shall be sufficient
5 documentation for the Oklahoma Tax Commission to issue a new
6 certificate of title.

7 D. A recorded lienholder may redeem the abandoned manufactured
8 home by paying all amounts owed for the use of the property and
9 reasonable costs incurred by the real property owner prior to the
10 sale, salvage, or removal of the abandoned manufactured home.

11 E. Proceeds from the sale shall be distributed in the following
12 order:

13 1. Costs of notice, removal, storage, and sale;

14 2. Amounts owed to the real property owner for use of the
15 property;

16 3. Payment of any recorded liens in order of priority; and

17 4. Any remaining funds shall be remitted to the abandoned
18 manufactured homeowner or held for one (1) year before being treated
19 as abandoned property.

20 F. A real property owner who acts in good-faith compliance with
21 this act shall not be liable for damages arising from the sale,
22 salvage, or removal of the abandoned manufactured home.

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G. This act shall apply to abandoned manufactured homes located on leased lots, private real property, or manufactured home park property.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 26th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate